

no compatibility at all between the description and the claim as granted. This was not comparable to the case in hand because the feature at issue, as interpreted by the board – although undisclosed – provided a clear and credible technical teaching compatible with both, the claim as granted and the described embodiment, which was therefore not entirely excluded from the scope of protection. Consequently, claim 1 of the 2nd auxiliary request did not comply with Art. 123(3) EPC, which led to an inescapable trap.

4. Correction of errors in the description, claims and drawings – Rule 139 EPC

According to R. 139 EPC, linguistic errors, errors of transcription and mistakes in any document filed with the EPO may be corrected on request; however, if the request for such correction concerns the description, claims or drawings, the correction must be obvious in the sense that it is immediately evident that nothing else would have been intended than what is offered as the correction. This wording does not differ in substance from the former R. 88 EPC 1973; only some editorial changes have been made in the three languages. Hence, the jurisprudence with regard to R. 88 EPC 1973 is applicable to R. 139 EPC (T. 1460/10).

Relevant for the present chapter on amendments is R. 139, second sentence, EPC, which concerns corrections to the parts of a European patent application or of a European patent relating to the disclosure (the description, claims and drawings). Other aspects related to corrections can be found under chapters II.F.4.3. "Correction of errors in a divisional application"; IV.A.5.2.2 "Correction of designation of applicant (Rule 139 EPC)"; IV.A.5.5. "Corrections under Rule 139 EPC"; IV.A.7.3. "Correction of designation of states (Rule 139 EPC)"; IV.B.3.8.4 "Correction of the withdrawal of the application under Rule 139 EPC". As to the corrections under the **first sentence** of R. 139 EPC, the boards of appeal, in particular the Legal Board of Appeal, have developed a large body of case law on corrections, namely that the correction must introduce what was originally intended, the error to be remedied may be an incorrect statement or an omission, and the request for correction must be filed without delay (see G. 1/12, point 37 of the Reasons).

4.1. Relationship of Rule 139 EPC with Article 123(2) and (3) EPC

In opinion G. 3/89 (OJ 1993, 117) and decision G. 11/91 (OJ 1993, 125) the Enlarged Board held that corrections under R. 88, second sentence, EPC 1973 (now R. 139, second sentence, EPC) were special cases of an amendment within the meaning of Art. 123 EPC and fell under the prohibition of extension laid down in Art. 123(2) EPC.

The parts of a European application or patent relating to the disclosure (description, claims and drawings) can be corrected only within the limits of what the skilled person would derive directly and unambiguously, using common knowledge and seen objectively and relative to the date of filing, from the whole of these documents as originally filed. Such a correction was **of a strictly declaratory nature** and thus did not infringe the prohibition of extension under Art. 123(2) EPC 1973.

For case law on these issues prior to G. 3/89 and G. 11/91, see the summary of facts and submissions of those decisions, and "Case Law of the Boards of Appeal", 7th ed. 2013,

II.E.4.1. For a summary of the findings in G 3/89 and G 11/91, see also G 2/95 (OJ 1996, 555, point 2 of the Reasons).

In T 1946/16 the board recalled that a correction under R. 139, second sentence, EPC was a special case of an amendment within the meaning of Art. 123 EPC and that the requested correction would have to meet the requirements of Art. 123(3) EPC. The board in T 2058/18 likewise noted that Art. 123(2) EPC applied to all amendments to the patent application or the patent; these included corrections of the description, claims or drawings under R. 139, second sentence, EPC.

4.2. Obviousness of the error and the correction

In order for a correction in the description, the claims or the drawings to be allowable under R. 139, second sentence, EPC, the boards apply a two-step approach. It must be established (i) that it is obvious that an error is in fact present in the document filed with the EPO, the incorrect information having to be objectively recognisable by the skilled person using common general knowledge (G 3/89, OJ 1993, 117 and G 11/91, OJ 1993, 125, point 5 of the Reasons), and (ii) that the correction of the error is obvious in the sense that it is immediately evident that nothing else would have been intended than what is offered as the correction (G 3/89 and G 11/91, point 6 of the Reasons). For recent decisions applying this two step approach, see e.g. T 923/13, T 1626/16, T 2058/18.

Since the prohibition of extension under Art. 123(2) EPC also applies to a correction under R. 139, second sentence, EPC (G 3/89 and G 11/91, point 1.4 of the Reasons), the parts of a European patent application or of a European patent relating to the disclosure (the description, claims and drawings) may be corrected under R. 139, second sentence, EPC only within the limits of what a skilled person would derive directly and unambiguously, using common general knowledge and seen objectively and relative to the date of filing, from the whole of these documents as filed (G 3/89 and G 11/91, point 3 of the Reasons).

4.2.1 Documents to be taken into account for the assessment of obvious error and correction

Before a correction can be made under R. 139, second sentence, EPC it has to be established what a skilled person would derive, on the date of filing, from the parts of the European patent application relating to the disclosure. As a result of the prohibition of extension under Art. 123(2) EPC, documents other than the description, claims and drawings may only be used insofar as they are used for proving the common general knowledge on the date of filing. On the other hand, documents even if they were filed together with the European patent application, such as priority documents and the abstract may not be used. Documents not belonging to the parts of a European patent application relating to the disclosure could, under certain circumstances, be included partially or wholly in the disclosure by means of reference. Evidence of what constituted common general knowledge on that date could be furnished in any suitable form (G 3/89 and G 11/91).

In T 1008/99 the board held that, for the purposes of R. 88 EPC 1973, the error had to be **apparent from the divisional application itself**, and the parent application could not be

used to demonstrate that the error was obvious. Even if it was apparent from the filed description, claims and drawings that they did not belong together, it was not immediately clear from the divisional application itself which of these parts was incorrect.

In T 2058/18 the board held that the disclosure of a family member of a document cited in an application could not be used to dispel doubts as to the meaning of an ambiguous part of the application.

4.2.2 Obvious error – incorrect information objectively recognisable

In G 3/89 (OJ 1993, 117) and G 11/91 (OJ 1993, 125) the Enlarged Board of Appeal specified that, for a correction under R 88, second sentence, EPC 1973 to be allowed, the respective part of the European patent application or patent had to contain such an obvious error that a skilled person was in no doubt that the information was not correct and could not be meant to read as such. The skilled person must be in a position objectively and unambiguously to recognise the incorrect information using common general knowledge. If, on the other hand, it was **doubtful** whether any information at all was incorrect, then a correction was ruled out. The same applies if incorrect information only becomes apparent in the light of the proposed correction.

In T 664/03 the board held that the feature concerned was comprehensible in its literal sense and a different interpretation did not impose itself in view of the description and/or the common general knowledge. Hence it was at least doubtful that the skilled person would come to the conclusion that the feature in question was incorrectly defined in that claim.

In T 829/05 the board held that, even if the skilled person were aware of an inconsistency between the claim and the drawing, he would have no cause to believe that the claim was incorrect. The drawing was stated to be diagrammatic and, in the absence of any evident technical reason to suspect that the claim was incorrect, the skilled person would simply accept the inconsistency as being characteristic of a schematic drawing.

In T 1436/12 the applicant sought the correction of a reference to a document (a US patent application identified by its docket number) incorporated by reference in the European application. Given that the incorporation by reference of features from a cross-referenced document fell under a different regime before the EPO than before the USPTO, the board deemed it to be conceivable that the incorporation of the reference was meant only for the prosecution before the USPTO and was, therefore, deliberately not amended when the International application was filed at the EPO. Thus the board was not convinced that the reference to a docket number in an application filed at the EPO must generally be considered to have been made in error.

In T 1702/12 the board held that the skilled person had no reason to doubt the value of 500 when reading granted claim 1 at face value, since this value **made technical sense**. Even when taking the description and dependent claims of the granted patent into account, the skilled person could not be sure that the value of 500 was erroneous, or whether an error occurred in the description or said dependent claims. The board rejected the argument

that any relevant evidence must be taken into account. Rather, if it was necessary to study the **prosecution history** of the case in order to determine whether an error had been made and what the correction should be, then the criterion of immediacy in R. 139 EPC was not met.

Likewise in T. 2523/11 the error itself was not obvious, since the wording of claim 1 was clear and understandable, no inconsistency with regard to the description existed, the range fell within the range as originally disclosed and it made perfect technical sense. Hence, the skilled person would not have any reason to doubt that it was anything but the limited range which was intended to be pursued.

For further examples of cases in which it was considered doubtful that the skilled person would have thought that the feature concerned was incorrectly defined, see T. 2230/08 and T. 1946/16.

In T. 2058/18 the board held that features the applicant had presented as essential features distinguishing the invention from the closest prior art could not later be said to be obvious errors.

4.2.3 Obvious correction – immediately evident that nothing else would have been intended than what is offered as the correction

In G. 3/89 and G. 11/91 the Enlarged Board held that the parts of a European patent application as filed which relate to the disclosure must further allow a skilled person – using the common general knowledge on the date of filing – directly and unequivocally to ascertain the precise content of the information the person making the request actually meant to give, instead of the incorrect particulars, on the date of filing or when making an amendment under Art. 123 EPC, so that, for said skilled person, "it is immediately evident that nothing else would have been intended than what is offered as the correction" (R. 139, second sentence, EPC). However, if there is any doubt that nothing else would have been intended than what is offered as the correction, a correction cannot be made.

In J. 5/06 the board, referring to T. 158/89 (which had not accepted correction in case of two equally plausible alternatives for a percentage range of a component), held that establishing that a suggested set of documents was a probable and suitable replacement did not amount to establishing that nothing else would have been intended. This latter threshold implied that there was only one **single plausible** replacement – the one which the skilled person would have deduced from those parts of the application which made up the disclosure of the invention. For the case in hand the board concluded that, to the contrary, a complete exchange of the application documents would quite obviously open the door to a plethora of plausible replacements. See also J. 16/13, also relating to replacement of application documents; T. 15/09 and T. 846/16, both relating to correction of a feature in the claims at issue.

In T. 955/92 the reasons given by the appellant to show that only the requested correction could have been intended were not based on the level of general knowledge on the date of filing. In order to arrive at the conclusion that the requested correction was the only

physically meaningful one, **experiments** had had to be performed which needed more than common general knowledge, and the results thereof would not have been available on the date of filing. The request for correction was therefore refused.

In T 438/99 the board held that the fact that a term or phrase could not be interpreted or construed because it was unresolvably ambiguous did not necessarily mean that its deletion was a permissible amendment under Art. 123(2) EPC 1973. There remained a residual clear meaning in the ambiguous term, e.g., as in this case, that a specific direction was taught, and suppressing that fact resulted in a different technical teaching. Therefore, the second condition of R. 88 EPC 1973 (immediately evident that nothing else would have been intended than what is offered as the correction) was not met by the offered correction of deleting the feature without replacement.

T 1728/07 concerns the correction of an error in a structural formula representing oxazoline derivatives. The board recalled that according to R. 139 EPC, second sentence, it must be immediately apparent to the skilled person that (i) an error has occurred and (ii) how it should be corrected. With respect to requirement (ii), it must be decided whether the corrected feature is directly and unambiguously derivable from the content of the application as originally filed taken as a whole. This requirement was found by the board to be fulfilled.

In T 423/08 there was an obvious mistake in the original wording of one of the claims, in that either "gemäß" (according to) or "vor" (before) was superfluous. Although deleting "gemäß" made sense when considered in isolation, it was incompatible with the wording of claim 1. Deleting "vor" was thus not open to objection under Art. 100(c) EPC.

In T 1508/08, the board concluded that the second condition for allowability of a correction under R. 139 EPC was not met. In its view, not only did the correction fail to solve the existing problems of a lack of clarity, but it actually made things **even less clear**. That was one reason why the skilled person would not have contemplated the correction made by the appellant proprietor. Even if it were assumed in the appellant's favour that the skilled person would have contemplated this correction, it was not the only one possible, but rather one of at least three conceivable corrections.

In T 455/09 the board held that in the case at issue the skilled person could not exclude one of two options with certainty, so that it was not directly and unambiguously evident that nothing else could have been intended other than the proposed correction. For another case where other corrections were equally possible, see T 923/13.

In T 2303/10 the board held that it would be obvious to the skilled person that the first of the two alternative corrections mentioned by the examining division was totally incompatible with what was disclosed in the application as originally filed, whereas the second was technically feasible and entirely consistent with the disclosure and therefore allowable.

T 163/13 concerned the correction of "72EF" to "72°F". The board held that the only possible correction having a technical meaning in the present context was the